

Datum
Date 28.04.2015
Date

Blatt
Sheet 1
Feuille

Anmelde-Nr:
Application No: 10 702 412.7
Demande n°:

The examination is being carried out on the **following application documents**

Description, Pages

1-22 as originally filed

Claims, Numbers

1-12 filed with telefax on 24-01-2011

Drawings, Sheets

1/6-6/6 as originally filed

1) Article 84 EPC

The expression "anti-inflammatory flavonoid extracted from *Olea Europea* or from *Capparis Spinosa*" is unclear, since the skilled person does not know which flavonoid from the said two plant species is meant actually. Moreover, the description does not give any guidance in this regard (e.g. in the Examples only "olive leaves extract" is mentioned).

Also "the anthocianoside" from red oranges or black rice is vague and indefinite. In this latter case also the Latin names for the plants are missing.

2) Article 56 EPC

Experimental data with respect to synergistic cooperation of *Opuntia ficus indica* cladodes polysaccharides have been shown for very few combinations only, see e.g. Fig. 5, whereas the majority of the active substances as listed in present claims 1 and 11 have not been shown to have more than additive effects when combined with *Opuntia ficus indica* cladodes polysaccharides.

The problem to be solved by the application was to provide an agent for the treatment of the diseases of the upper gastrointestinal tract as listed in claim 1.

The solutions, i.e. the various combinations according to claim 1 or claim 11, respectively, are considered as being obvious, in the view of the documents cited under Article 115 EPC by third parties for the reasoning as outlined in the following.

Exhibit 1 already shows a formulation containing *Olea europaea* L. as being useful for the treatment of gastritis when orally administered.

Furthermore, **Exhibit 2** refers to a formulation containing *Capparis spinosa* L. used for the treatment of dyspepsia/loss of appetite when orally administered.

Exhibits 3-5 relate to oral formulations containing *Oryza sativa* L. for the treatment of dyspepsia or gastritis.

D 3 as cited in the Search Report describes that *Opuntia ficus indica* cladodes extracts possess a protective action against ethanol-induced gastric ulcer in the rat.

Thus, the combination of *Opuntia ficus indica* with *Olea europaea* or with *Capparis spinosa* or *Oryza sativa* for use in the same medical field, for which the said plants have already been used separately, is not considered as involving inventive merits in the sense of Article 56 EPC, as long as no surprising/unexpected effect has been shown. Therefore, an inventive step of the claimed subject-matter is not recognizable.

3) The above mentioned objections should be overcome by suitable amendment or explanation in written form. If not, refusal of the application (Article 97(2) EPC) should be expected. In the case where new claims are filed, they should be accompanied by carefully adapted pages of the description (Rule 42(1) EPC).